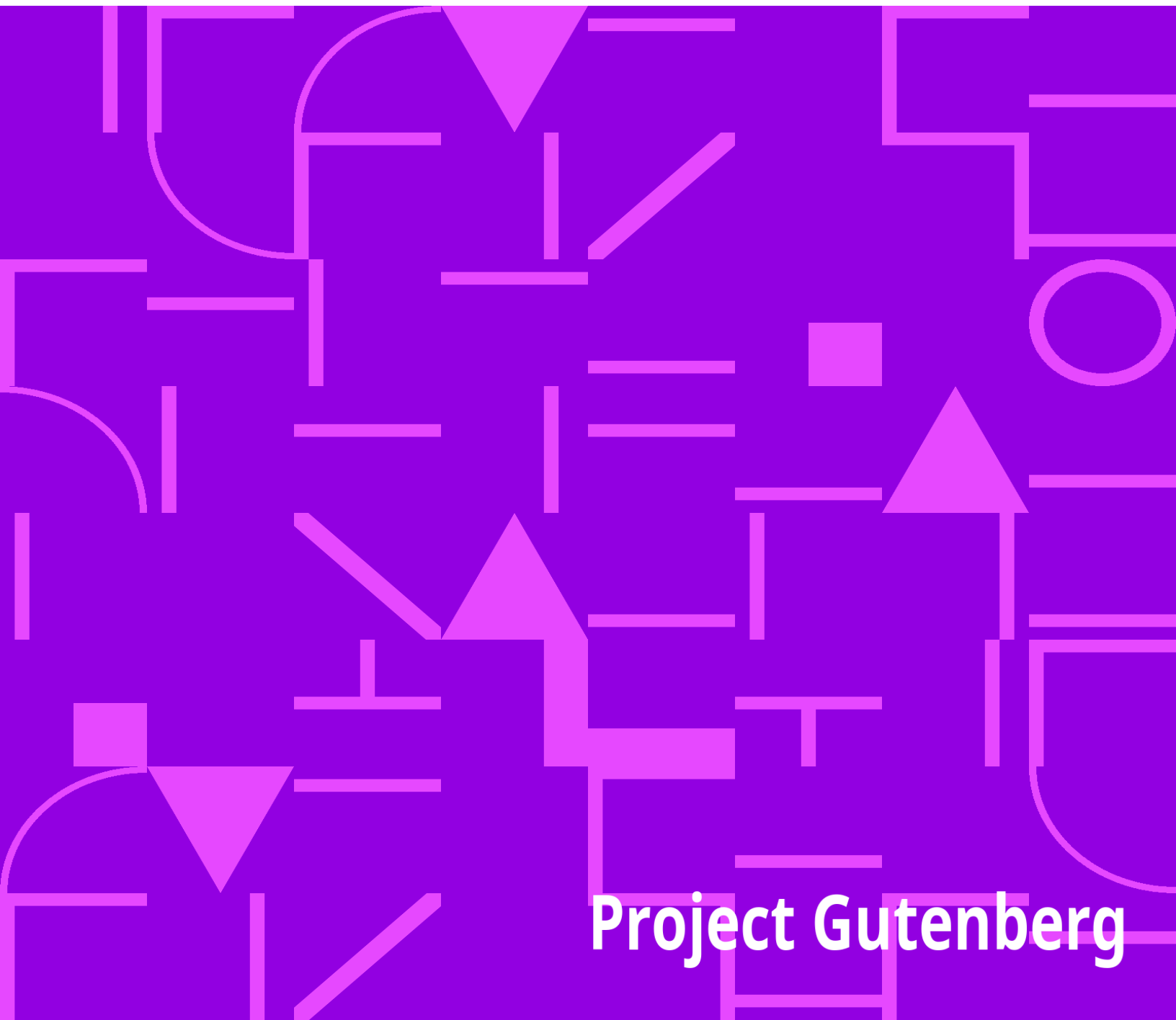


House of John Procter, Witchcraft Martyr, 1692

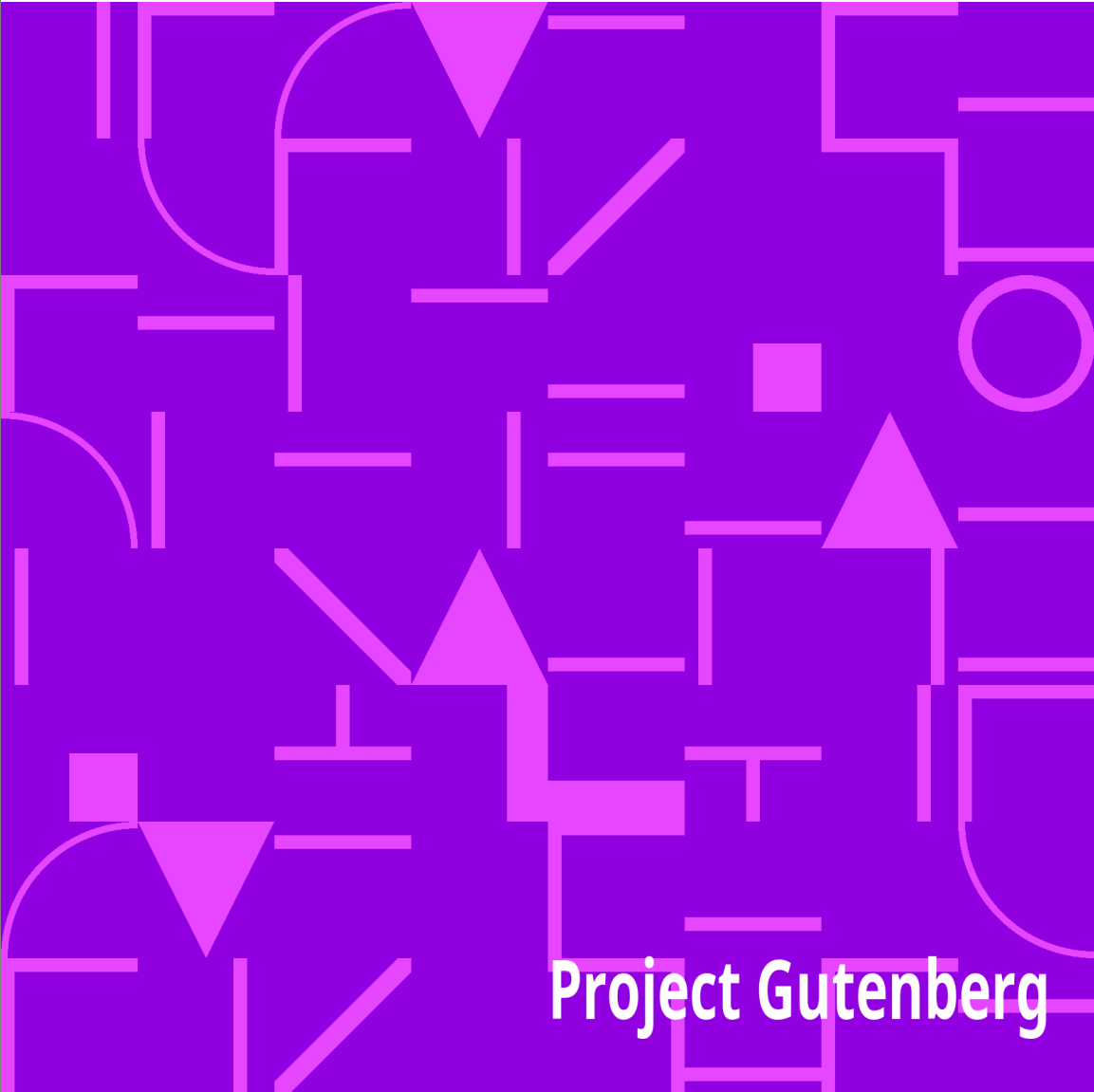
William P. Upham

An abstract geometric pattern composed of various shapes including squares, triangles, circles, and lines, all in shades of purple and magenta, creating a complex, interlocking design.

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Transcriber's Note:

Sections of this text have been quoted from historical documents written with great variability in spelling and punctuation. These inconsistencies have been retained. A list of corrections made to

the 1904 portions of this text can be found following [this text](#).

HOUSE

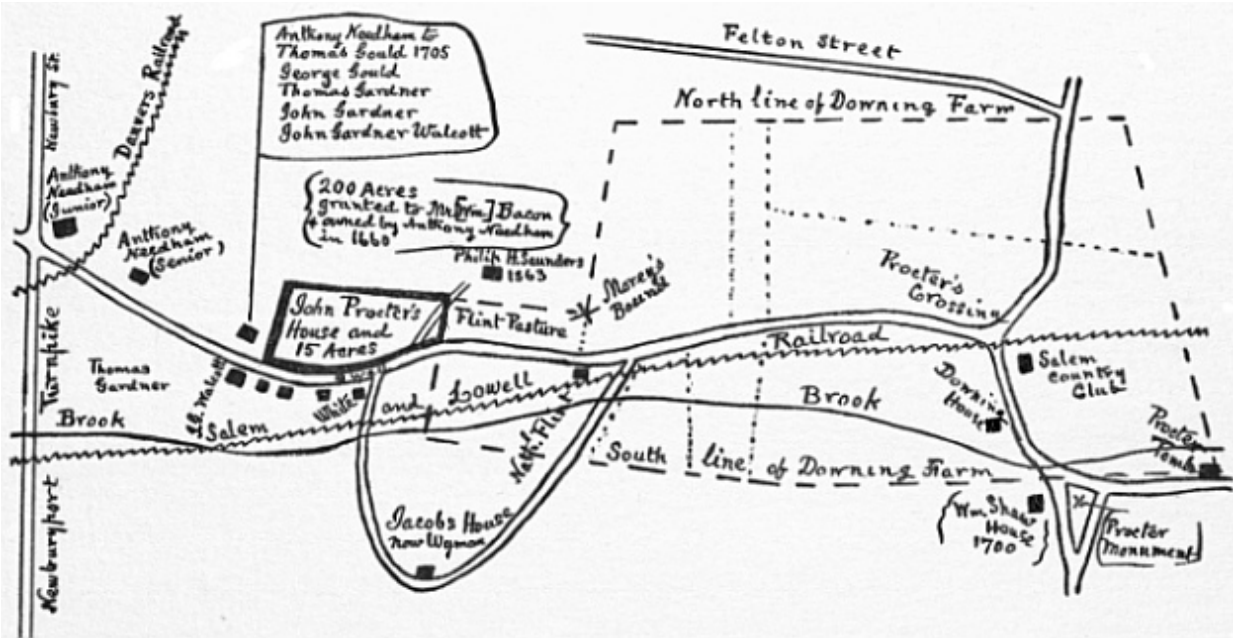
OF

JOHN PROCTER,

WITCHCRAFT MARTYR, 1692.

BY WM. P. UPHAM.

PEABODY:
PRESS OF C. H. SHEPARD,
1904.



HOUSE OF JOHN PROCTER

WITCHCRAFT MARTYR, 1692.

[A paper read by William P. Upham at a meeting of the Peabody Historical Society at the Needham house, West Peabody, September 2nd., 1903.]

It is now nearly forty years since I assisted my father, the late Charles W. Upham, in the preparation of his work on Salem Village and the Witchcraft tragedy of 1692, by collecting what information could be obtained from the records as to the people and their homes in that locality. In doing this I was enabled to construct a map showing the bounds of the grants and farms at that time. On that map is represented quite accurately the Downing Farm, so called, owned, in 1638, by Emanuel Downing, father of Sir George Downing, and occupied as tenant, in 1692, by John Procter, the victim of the witchcraft delusion. When I made the map I knew that John Procter at his death owned, as appears by the inventory of his estate, fifteen acres of land in Salem, but I was not able then to locate it with exactness. Lately, in making a more complete study of the records relating to the Downing farm and the surrounding lands I have learned the exact situation of the fifteen acre lot owned by him, and also that he had a house upon it as early as 1682 and until his death in 1692. It appears that this lot is the place where he was buried, according to the family tradition, although the knowledge as to its being once owned by him seems to have passed out of the neighborhood for more than a century.

This lot is indicated, on the accompanying map of the locality which I have drawn for the purpose, by heavy dark lines. It was on the north side of Lowell Street in West Peabody, just west of the westernmost line of the Downing Farm and about one hundred and fifty rods east from the place of this meeting, which is the Needham homestead on the Newburyport Turnpike, or Newbury Street as it is now called, marked on the map as then, in 1692, the home of Anthony Needham, Junior.

The discovery that this was John Procter's land called to mind a conversation I had with Mrs. Jacobs, an aged lady who lived in the old Jacobs house, now the Wyman place, and of which I made the following memorandum about thirty years ago:—

"Mrs. Jacobs (Munroe) says that it was always said that Procters were buried near the bars as you go into the Philip H. Saunders place. Mr. James Marsh says he always heard that John Procter, of witch time, was buried there."

Upon inquiring lately of Mrs. Osborn, the librarian of the Peabody Historical Society, as to what was the family tradition, I learned that it was said by Mrs. Hannah B. Mansfield, of Danvers, that John Procter was buried "opposite to the Colcord" (now the Wyman) "pasture, amongst the rocks." In answer to an inquiry by Mrs. Osborn, Mrs. Mansfield wrote to her as follows:—"A great aunt took me, when a little girl, with her to a spot in a rocky hill where she picked blackberries, and said there was the place 'among birch trees and rocks where our ancestor of witchcraft notoriety was buried.' It was on the north side of Lowell Street in what was then called the Marsh pasture nearly opposite the Jacobs farm which is on the south side of Lowell Street."

The Marsh pasture from which Mrs. Mansfield's aunt pointed out the "birch trees and rocks" near by where John Procter was buried was, no doubt, the pasture conveyed by James Marsh to Philip H. Saunders, 11 June, 1863, and then described as "thirteen acres known by the name of Bates Pasture." I do not know of any other place near there that would be called the Marsh pasture at the time Mrs. Mansfield mentions. This thirteen acre pasture was conveyed by Ezekiel Marsh to John Marsh, 15 Oct., 1819, having been devised to him by his father Ezekiel Marsh. It had a way leading to it from Lowell Street over the eastern end of the John Procter lot as shown on my map. This way is still used as well as the bars opening into it on Lowell Street a few rods east of the westerly way leading southerly to the Jacobs, or Wyman, place. These are the "bars as you go into the Philip H. Saunders place" mentioned by Mrs. Jacobs as stated above, unless we suppose the expression to mean bars leading from the John Procter lot where the way enters the Philip H. Saunders place, or Marsh pasture, as Mrs. Mansfield calls it. Perhaps the latter locality is the most probable since it is high rocky ground; but which bars were meant is uncertain.

Mr. Daniel H. Felton, who has an intimate knowledge of the history of all the lands about Felton's Hill, and is himself a descendant of John Procter, informs me that Mrs. Hannah B. Mansfield some years since related to him "that she went berrying at the Jacobs farm when she was a child and that older persons said that John Procter was buried on the opposite side of the way (among the rocks) from where they turned off from Lowell Street to go to the Jacobs farm." Mrs. Mansfield lived when a child on the Newburyport Turnpike opposite the Needham homestead. It was, I understand, her "aunt Betsey Gardner" who, when picking blackberries "on a rocky hill" pointed out to her the place "among birch trees and rocks" where John Procter was buried.

To reconcile these traditions with the known facts, we may suppose, as related by Mrs. Jacobs and Mrs. Mansfield, that the place of burial was pointed out to them from the high land on the Jacobs place south of Lowell Street, where the "rocky hill" and the bars leading into the Marsh pasture on the north side of Lowell Street could be plainly seen. Subsequently Mrs. Mansfield's aunt took her to the rocky hill itself and pointed out the exact spot, probably close to where the bars lead into the Marsh pasture, now the Saunders place. In going home from the Jacobs farm they would turn into Lowell Street at the old way near the house marked "White" on my map, and some ten rods westerly from the way above mentioned leading from the opposite side of Lowell Street to the Saunders place. This way from the Jacobs place is a very old way. Mr. Felton tells me: "I recollect that my father said over forty years ago that the gate posts of locust were nearly one hundred years old then."

Two hundred years ago the Saunders place, formerly the Marsh pasture, was part of the large tract of homestead land owned by Anthony Needham. This Needham land included eight acres of land conveyed by Anthony Needham to his son-in-law, Thomas Gould, 26 Sept., 1705, and conveyed to Thomas Gardner 27 Jan., 1743, by George Gould, the son of Thomas Gould. The eight acre lot descended to John Gardner and from him to John Gardner Walcott, and is where John G. Walcott, Jun., now lives.

The land which I find to be identical with the fifteen acre lot owned by John Procter is on the north side of Lowell Street between the above mentioned eight acre lot, now the home of John G. Walcott, Jun., and the lot marked "Flint Pasture" on my map, the Procter lot being enclosed by heavy black

lines. The westerly part of the Flint Pasture was conveyed, 17 Sept., 1898, to John D. Dennis, who lives there now.

The uniform family tradition that John Procter was buried in the locality I have thus described, is confirmed in my mind from a consideration of certain facts, bearing with more or less definiteness upon the question, which I will endeavor briefly to recite.

It is well known that the victims executed as witches on Gallows Hill in Salem, in 1692, were thrown into mere shallow graves or crevices in the ledge under the gallows, where the nature of the ground did not allow complete burial, so that it was stated at the time that portions of the bodies were hardly covered at all. It was natural that the relatives of those thus cruelly put to death and left practically without burial, should, where they were able and courageous enough for the dangerous undertaking, remove the bodies to their homes for interment. It is the tradition that this was done in several cases, secretly and during the night, that it might not incur the opposition of the frenzied and deluded people. This removal was made by the children of Rebecca Nourse, and a beautiful monument now marks the spot to which her body was removed. There is a similar tradition in the Procter family, and there is good reason to believe that his body was removed in a similar manner. But if so, the necessary secrecy with which the sad duty was performed has caused the place where he was buried to be known only by the slender thread of tradition which I have mentioned.

The boulder inscribed to the memory of John Procter, which was dedicated this past year at the junction of Lowell and Summit Streets in Peabody, must be considered to have been placed there not as indicating the locality of his burial, but because that was the most suitable and available ground in the near neighborhood of the house where for so many years and at the time of his death he lived as the tenant of the great Downing Farm. There was the entrance to the Farm from Salem, and from that spot one obtains a full view of the farm house where he lived, believed to be in part still standing on the same site, and of the fine and far extending tillage land which probably first attracted the admiration of Emanuel Downing two hundred and seventy years ago, and is now found so attractive and admirably suited to the purposes of a golf ground by the Salem Country Club.

What is now known as the Procter Tomb on the north side of Lowell Street at the southeastern corner of the Downing Farm is of modern origin. We cannot believe that John Procter's family would have deposited his body in ground to which they then had no title except as tenants. At the time of the imprisonment of John Procter and his wife Elizabeth the family was no doubt broken up and the house stripped of everything that could be taken away to pay the fees of arrest and imprisonment. The great farm was no longer their home and they were not again in a position to return to and occupy it as their own until nearly a decade had passed, when, through the efforts of Thorndike, one of the sons of John Procter, the Downing Farm in its entirety was purchased from Charles, the grandson of Emanuel Downing and son of Sir George Downing, then deceased.

At the time of his death in 1692 John Procter owned, except what land in Ipswich he may have inherited from his father, only the fifteen acres with a house upon it, which, as I have said, was just west of the Downing Farm on the north side of Lowell Street. This fact alone would render it entirely probable that when the body was removed, in 1692, it would be carried to this place. In fact, in view of the peculiar circumstances of the necessity of secrecy and the otherwise homeless condition of the family, no other place would have been chosen.

And now that direct tradition of the descendants, independently of any knowledge that John Procter owned this land, confirms this view by so remarkably agreeing with long forgotten records as to the locality, it may be said confidently that we know with reasonable certainty the spot where these revered and honored relics were laid so long ago. The "bars as you go into the Philip H. Saunders place" are still there, and the way through is still used and marks the place where in 1708 John Higginson 3d and Hannah wife, in conveying to Daniel and Lawrence Southwick the nine acre lot next east of Procter's lot, reserved the liberty of a "highway of one pole wide at the western end of said land to be for ye use of Anthony Needham Sen," "they to maintain a pair of sufficient bars next ye common highway so long as they use the same."

Anthony Needham, Sen., at that time owned what has recently been known as the Philip H. Saunders place, and this right of way was for the benefit of that place. Mr. Dennis now lives at the westerly end of the nine acre lot conveyed by Higginson, as above mentioned, which was long known as the

"Flint Pasture." The bars and the way are now on the west side of the wall dividing the Dennis land from the Procter lot instead of being on the east side; indicating that the dividing line was at some time changed. This change may have been made without any evidence of it appearing on record, by Zachariah King, who owned both lots from 1811 till 1818; and this would account for the apparent change in size of the two lots as described in the deeds, the westerly (or Procter) lot increasing while the easterly lot decreased.

On the north side of Lowell Street, about half way between these bars and the John G. Walcott, Jun., house, is a well on the edge of the road against a steep rocky hill rising back of it. This, I understand, has sometimes been called the "Procter well." There seems to be no room for a house close by it on that side of the road, but it is possible that the road may anciently have turned more to the south at this point, though I have not found any evidence in the records to that effect.

The history of the John Procter house and fifteen acres of land, as derived from the records, may be briefly stated as follows:—

Before we can understand the meaning of the deeds of the Procter lot we must know something of the history of the Downing Farm and particularly of the nine acre lot known formerly as the Flint Pasture, which is the large area of cleared land on the north side of Lowell Street, on the west end of which is at present the house of Mr. Dennis. That this may be better understood at a glance I have marked on my sketch, by a broken line, the bounds of the Downing Farm, which included the "Flint Pasture."

It seems that about two hundred and seventy years ago Roger Morey, a companion and it is thought a relative or connection of Roger Williams, had a grant of forty or fifty acres, which was located to the west or southwest of a large tract granted to Robert Cole and sold to Emanuel Downing before 1638. The Roger Morey grant was on both sides of what is now Lowell Street, that part on the northerly side being the same nine or ten acres above mentioned as afterwards known by the name of the Flint Pasture.

In a deposition by Nathaniel Felton Sept. 18, 1700, he being then 85 years of age, he says: "Soon after Roger Morrey removed from Salem, which was before 1644, I, this deponent, heard that said Morrey had sold his land in the

woods to Emanuel Downing and I do further testify [as to?] a parcel of swamp or upland & meadow being a part and belonging to ye said Morrey, and [it] lyeth at the westerly end of Mr. Downing's farm"—deponent "has lived about 55 years a near neighbor to said farm and never heard that said Morrey's land was claimed by anybody but the tenants living on Mr. Downing's farm." [Reg'y of Deeds, Salem, B. 15, Fol. 5.] Fortunately for the identification of this land, a most remarkable bound often referred to in the ancient deeds is still to be seen marking the exact northeasterly corner of the Morey grant. It is a high and precipitous rock about twenty rods northerly from Lowell street just opposite the house on the south side which was formerly the house of Nathaniel Flint, and a few rods westerly from the easterly way leading southerly to the Wyman Farm. It forms the northeasterly corner bound of the "Flint Pasture," and is marked on my sketch "Morey's Bound," that being the name given to it in the numerous ancient deeds and depositions.

The return of the settlement of the northwesterly bounds of the Downing Farm in 1681, recorded in Salem town records, gives the line from the extreme northwestern corner by Putnam's land as running "strait on to a white oak called Morey's Bound."

In a controversy which seems to have existed in 1685 and in 1690 between Anthony Needham and the owners of land adjoining his, presumably the owners of the Downing Farm, Nathaniel Felton testifies that "about 30 years since" (that is about 1660) "Mr. Thomas Gardner and Jeffry Massey (who by virtue of a grant of 200 acres due unto Mr. Bacon^[A]) when they went to lay out the said 200 acres I this deponent went with them, where cominge upon the land neere adjoyning to the farm called Mr. Downings farme, the first bound they made of the said two hundred acres was upon a hill being as I conceive about 20 rods on the north side of the highway^[B] leading up to Joseph Pope's farme, and was a white oak sufficiently marked, ye which white oak the surveyors affirmed was the northeast corner bounds of [Moreys]^[C] farm, from thence they went upon a straight line westward to another white oak which was marked also upon four sides, and stood neer about 20 rods to the northward of ye said highway which the said surveyors affirmed to be the northwest corner bounds of the said [Morey's] farme, and it also was the northeast corner bounds of John Marsh his farme, which did joyne to ye [Morey] farme; and I doe further testifie that John Marsh shewed

me the said white oake and affirmed it to be the northeast corner bound of his land and the northwest corner bound of [Morey's] land."

[A] There are depositions recorded in Essex Reg'y, B. 11, Fol. 186-9, by which it appears that Rebecca, wife of William Bacon, was a daughter of Thomas Potter, Esq., and that her brother, Humphrey Potter, was the father of Ann Potter, afterwards the wife of Anthony Needham.

[B] Now Lowell Street.

[C] In the record it is Massey, evidently a mistake, as shown by Marsh's deposition, next given.

In 1685 Zachariah Marsh testifies that "about 25 years since my father John Marsh, desirous I should know the bounds of his farme took me along with him, and he then shewed me all the four corner bounds belonging to his farme, and this I doe testifie that he shewed me a white oake sufficiently marked standing about 20 rods northward of the highway leading up to Joseph Pope's by a little swamp the which oake my father affirmed was the northeast corner bounds of his farme, and that it was also the northwest corner bounds of Roger More's farme; and further I doe testifie that when we run the line Anthony Needham being present owned the said white oake to be the corner bounds of my father's farme, and this is the bounds in controversy and ye same that Nath. Felton attested unto, and hath ever been reputed so to be, no man that ever I know having questioned it, till of late Anthony Needham." This deposition was again sworn to in 1690. See Reg'y of Deeds at Salem, Book 8, F. 181.

This controversy was probably between Anthony Needham and John Procter as tenant of the Downing Farm, as appears by an action at the Salem Court, Nov., 1685, for damage done to John Procter in claiming "land belonging to the plaintiff as being in possession of, and hiring the said land of the Worshipful Symon Bradstreet Esq.," said land being part of a farm "formerly belonging to Mr. Emanuel Downing"—Bradstreet married the daughter of Downing.

The bounds described in these depositions are those of the "Flint pasture" and have remained substantially unchanged to the present day, as is evident to the eye, for, in passing along Lowell Street one can see plainly the old and venerable looking stone wall beginning at "Morey's Bound" on the top of the high rock and running along in a westerly direction at about twenty rods distance northerly from the street. In the deed of the Downing Farm to

Thorndike Procter 13 Sept., 1700, the two bounds testified to by Felton and by Marsh are mentioned as follows:—the line of the Downing Farm running from the northwest corner bound "southwestward unto a white oak tree standing on the Rocks, and from thence northwestward unto a swamp white oak stump standing about 20 poles on the northerly side of the way leading to Anthony Needhams" etc. In the deed by Thorndike Procter to his brother Benjamin, in 1701, of that portion of the Downing Farm now owned by Daniel Brown, the Morey bound is described as "a dead white oak Bound Tree standing on the Rocks."

The portion of the Downing Farm marked on my sketch as the Flint Pasture, being about nine or ten acres, was conveyed with other portions by Thorndike Procter to Samuel Marble, in 1701, the two bounds above mentioned being described in the same words. Samuel Marble the next year conveyed the same to Samuel Gardner. Hannah, the wife of John Higginson 3d, mentioned above as conveying this lot to the Southwicks in 1708, was a daughter of Samuel Gardner. Daniel Southwick, Jr., conveyed the same to Jonathan Flint in 1729 and he conveyed it to John Jacobs in 1738. John Jacobs left it by will to his son Daniel, who conveyed it to Zachariah King in 1775. By him it was divided between his daughters Desire Procter and Mary Upton, in 1818, and its history is thus brought within the knowledge of those now living.

West of this Flint Pasture was the Procter fifteen acre lot, the description of which in the deeds and depositions we can now understand. How John Procter became owner of this fifteen acre lot does not appear upon record, but as John Marsh appears, by the depositions of Nathaniel Felton and Zachariah Marsh given above, to have been the owner there originally, we may conjecture that the title came from him by some unrecorded deed or otherwise.

The following deed, dated 5 Nov., 1681, and recorded Book 6, Fol. 48, may throw some light on this question, as it apparently conveys the eight acre lot which, as above mentioned, was conveyed by Anthony Needham to his son-in-law Thomas Gould, in 1705, where John G. Walcott, Jun., now lives.

Joseph Procter of Ipswich conveys to Anthony Needham of Salem "a certain tract of land being the third part of twenty three acres of land (formerly the land of John Herod) lying and being in ye towne of Salem aforesaid, the said

twenty three acres of land being bounded on ye northerly side with ye land of ye said Needham, on ye south with ye highway, on ye west with ye land of ye said Anthony Needham, and on ye east with ye land now in ye occupation of John Procter."

Supposing this third part of the twenty-three acres to have been the eight acre lot referred to above, being the only locality that would agree with the description, the land in the "occupation of John Procter" on the east side of the whole "twenty three acres" would be the "Flint Pasture," part of the Downing Farm, which was then, in 1681, in the occupation of John Procter, as tenant. It is therefore quite probable that the "fifteen acre" lot which John Procter owned was the other two thirds part of the "twenty three acres," and that he became possessed of it in the same way that his brother, Joseph Procter, became possessed of the third part, perhaps in the division of an estate. What the estate was may be ascertained by future investigation.

The first we know positively of the lot in question as being John Procter's is through the record of an action which he brought at the County Court, in 1685, against Steven Fish for nine pounds ten shillings due for rent. Procter was nonsuited. Fish at the same time sued Procter for non delivery of land hired of him by lease March 1st, 1681, (1681-2). The jury found for a delivery of the land according to the lease.

In 1689 John Procter "for my love and parental affection unto my beloved wife Elizabeth Procter and all her children" conveys to certain trustees for their benefit "all my estate for their supply and maintenance and make over and give to them my house and land lying in Salem bounds containing fifteen acres, more or less, bounded with ye land of Anthony Needham northwest and east southerly^[D] and south and west with ye common road or highway in part and partly alsoe with land of John Marsh and some land of Thomas Gardner Sen. that comes within the highway." The last words in this description are puzzling and perhaps indicate that the road at the westerly end of the lot ran further to the south than it does to-day.

[D] This probably refers to the way which Needham had to his land over the western end of the lot lying next east of the Procter lot.

The next information is obtained from a deposition by Anthony Needham, Thomas Gould and Isaac Needham, in 1730, taken "*in perpetuam rei memoriam*" and recorded in the Registry, Book 54, Leaf 246, as follows:—

They testify that "they very well knew that Mr. John Procter late of Salem, deceased, possessed in his own right for several years before and untill ninety two^[E] a certain tract of land situate in Salem aforesaid containing about 15 acres, butting easterly on land now in ye possession of Jonathan Flint, southerly and southwesterly on the highway leading to Joseph Popes, ^[F] northwesterly and northerly on land of the deponent Thomas Gould and northeasterly on land of Thomas Needham. That the said John Procter had a house upon the abovesaid land which he leased to one Stephen Fish^[G] since let to one Lincoln and to one Bates, who improved it under and in right of the said John Procter. That Benjamin Procter son of the said John Procter possessed and improved ye above described parcel of land from the year 1692 untill his decease which happened about fourteen years since. That Mary the widow of said Benjamin Procter and her son John Procter have possessed and improved the same right from the time of his decease untill this day." The deposition is dated Jan. 7, 1730. The name of "Bates pasture" applied to the Philip H. Saunders place in the deed from Marsh, in 1863, suggests the thought that it may have been derived from the Bates mentioned in the deposition as one of the tenants of the John Procter house.

^[E] 1692.

^[F] Now Lowell Street.

^[G] See above, the suit against Fish for rent.

It only remains to trace the title of the John Procter lot to the present time. It appears from various deeds and other records that the title descended from John Procter to his son Benjamin, and then to his son John, the grandson of the first named John Procter. From him it passed to his son Benjamin, and then to this Benjamin's sons, James and Francis Procter. Francis gave a deed of it to James April 19, 1802. Desire Procter, widow and administratrix of James Procter, conveyed it to Zachariah King Aug. 9, 1811, describing it as "a certain piece of land called the upper pasture situate in said Danvers containing sixteen acres, be the same more or less, and is bounded as follows, viz.—southerly on the highway, northwesterly and northerly on land of John Gardner, Jr., northeasterly on land of Ezekiel Marsh, and southeasterly on land of the said Zachariah King to the bound first mentioned." Zachariah King conveyed the same to his daughter, Desire Procter of Danvers, widow, Feb. 18, 1818.

From Desire Procter the title descended to Rebecca P. Osborne, her granddaughter, and others who, in 1889, conveyed the lot to Harriet A. Walcott, wife of John G. Walcott, the description being as follows:—"a parcel of land in that part of Peabody called West Peabody, containing about seventeen acres and two fourths and formerly called the Upper Pasture, bounded southwesterly by Lowell Street about ninety two rods and eleven links, northwesterly by land of Walcott, formerly of John Gardner, about thirty eight rods, northeasterly by land of Walcott, formerly of Gardner, and by land of Philip Marsh, formerly of Ezekiel Marsh, about seventy six rods and nineteen links, southeasterly by other land of the grantors, formerly of Zachariah King, about seventeen rods and fourteen links."

John G. Walcott and Harriet A. Walcott, wife, conveyed the same to Mary E. Collins, wife of William F. M. Collins, by deed dated June 27, 1898.

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Transcriber's Note:

Page [14](#): Added missing period. ("ye land now in ye occupation of John Procter.")

Page [14](#): Changed "eight-acre" to "eight acre" for consistency. ("to have been the eight acre lot referred to above")

Page [16](#): Changed "See, above," to "See above," in Footnote G.

Page numbers in this ebook have been changed to match the page references used in the index in the original book.

Index: Changed 11 to 12 in page reference for Rebecca Bacon.

Index: Added three missing commas to entries.

Index: Changed "Massey, Jeffrey" to "Massey, Jeffry" to match reference in text.

*** END OF THE PROJECT GUTENBERG EBOOK HOUSE OF JOHN
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